KINGROSS INVESTMENTS PVT LTD
versus
JIA XIN INVESTMENTS PVT LTD
and
SCAGLIA INVESTMENTS PVT LTD
and
REGISTRAR OF COMPANIES NO

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 23 June 2026

Opposed matter

K Kachambwa, for the applicant
S Banda, for the 1st and 2nd respondents

CHITAPI J: The main matter is case No HCH 3123/24. Case Number HCH 3395/25 is an ancillary matter in which was sought by the first and second respondents therein, an order for leave to file an additional affidavit. The parties are the same in that matter as herein. The applicant is Kingross Investments (Pvt) Ltd and the first and second respondents are respectively Jia Xin Investments (Pvt) Ltd and Scaglia Investments (Pvt) Ltd are both companies with limited liability registered and operating in Zimbabwe. The third respondent is the Registrar of Companies and is a passive participant cited to conform with the law that requires that all interested parties to a *lis* should be cited and/or served with the application so that they are aware and are afforded the opportunity to protect their interest if such are affected. In *casu,* the relief sought by the applicant requires action on the part of the third respondent to correct the record of directorship in the second respondent

In the main matter, the applicant prays for a declaratory order in the following terms:

"IT IS ORDERED THAT

1. The application for a declaratory order be and is hereby granted.
2. It is declared that the 8 December 2016 agreement between the applicant and the first respondent is still extant.
3. The applicant is still a 50% shareholder in Scaglia Investments Private Limited; the second respondent
4. The second respondent's directorship as per CR 14 filed with the third respondent's office in December 2016 still stands.
5. Any changes in Directorship that might have been affected through the removal of the directors nominated by the applicant as per the 2016 CR 14 annexed C be and is hereby declared null and void.

6. Any respondent who shall oppose this application shall pay costs of suit on a legal practitioner and client scale."

The respondents opposed the application. An intervening issue arose after the application was ready for hearing. The first and second respondents raised through counsel a point of law for the first time orally at the hearing. I directed that a proper application should be filed to motivate the court to allow the point to be raised. That gave birth to Case No HCH 3395/25. The first and second respondents then filed an application to file a further affidavit in terms of rule 59(12) of the High Court Rules 2021. The parties agreed that I should deal with that application first as it was an impediment to the hearing of the main case. The case was fast-tracked in a case management hearing wherein there was agreement on shortened time limits for filing affidavits and heads of argument.

The point of law sought to be raised was that there was no date inserted on the founding affidavit filed by the applicant in Case No HCH 3123/24. For this reason, the first and second respondents averred that without the date, the affidavit was invalid and should be expunged from the record and the matter in turn struck off the roll. I allowed the filing of the supplementary affidavits by the parties to deal with the issue. At the hearing of the application on 4 July 2025, counsel for the respondents raised over the bar and orally a preliminary point to the effect that the founding affidavit of the applicant was not dated. He submitted as deposed to in the supplementary affidavit that the absence or omission of the date invalidated the affidavit with the result that there was no proper application before the court and that the application consequently should be struck off the roll.

The applicant after argument applied to file a further affidavit(s) to deal with the issue of the undated affidavit. I granted the application despite the respondents' opposition. The further affidavit which I agreed to its filing is by the applicant and by its legal practitioner to explain the absence of a date on the founding affidavit.

The deponent to the founding affidavit Nev Kloppers averred that the absence of a date was an omission which he did not immediately notice. He averred that the respondents did not appear to have noticed the omission either because they only did so at the hearing. He averred had the objection been raised earlier in the opposing affidavit it could have been attended to. He averred that the court had a discretion to allow the adduction of evidence to explain the omission of the date.

The deponent aforesaid attached an affidavit by the legal practitioner who acted as the commissioner of oaths Victor Vengesayi. He deposed that the applicant's legal practitioner attended at his offices in the company of Nev Kloppers who required the services of a

Commissioner of Oaths. He confirmed the identity of the deponent after checking the deponent's national identity document in the form of the deponent's passport.

The legal practitioner described the motions of what he did. He explained that he ascertained that the name of the affidavit was the same as on the passport. Thereafter he asked the deponent whether he knew and understood the contents of the affidavit and whether he considered the oath to be binding on his conscience. The legal practitioner deposed that he proceeded as follows:

> "9. I proceeded to administer the oath by
> 9.1. Causing Mr Nev Kloppers to utter the following words, "I swear that the contents of this affidavit are to the best of my knowledge true, so help me God"
> 9.2. He proceeded to sign the Founding Affidavit in my presence.
> 9.3. I then proceeded to sign the Founding Affidavit under the part of the Commissioner of Oaths.
> 9.4 I affixed my Commissioner of Oaths stamp under my signature.
> 9.5 I inadvertently forgot to insert the date on the affidavit. However, I confirm that Mr Nev Kloppers took oath and signed the Founding Affidavit in my presence on the 17th of July 2024."

The first and second respondents opposed the application. They deposed that absent the date of signing the affidavit by the deponent to the founding affidavit, this rendered the whole affidavit invalid. They submitted that the timing of the raising of the point did not matter because the invalidity could not be cured. They averred that the defect could not be cured and that the applicant's only option was to file a proper application instead of seeking to cure a void application.

In relation to the affidavit of the explanation by the legal practitioner who commissioned the affidavit in dispute, Mr Victor Vengesayi, the respondents averred that the legal practitioner did not tender an apology for the omission to insert a date. They averred that he did not attach a copy of the passport by which he identified the deponent to the affidavit. They averred that he should bear the costs of the application.

In relation to the affidavit of the applicant's legal practitioner Mr Koto explained that he was oblivious to the absence of a date on the applicants founding affidavit, the respondent averred that Mr Koto was grossly negligent in filing an undated affidavit. They made the same criticism of dereliction of duty as made against Mr Vengesayi.

Pointedly in my view, the criticism of gross negligence made by the respondents against Mr Vengesai and Mr Koto apply to the respondents' legal practitioners with equal force. This is so because the respondents' legal practitioners in opposing the main application did not object to the "invalid" founding affidavit in substance and did not raise the objection

of the invalidity of the founding affidavit for want of the insertion of a date of commissioning and signing of the affidavit. It seems to me that the trio of the applicant's legal practitioner, the legal practitioner who commissioned the affidavit and the respondents' legal practitioner all did not notice the absence of the date. It is insincere of the respondents' legal practitioner to adopt a holier-than-thou attitude instead of confessing his own failure to notice the anomaly and then seeking avoidance.

The circumstances of the matter are such that all parties proceeded with the filing of all papers and heads of argument and the matter was set down for hearing. The issue of the absence of a date on the founding affidavit was not raised until the hearing. It was also raised without notice. No prejudice resulted or was shown or alleged to have been suffered by the respondent arising from the anomaly. The only issue that remains is for the court to determined whether or not the absence of the date invalidated the affidavit.

The rationale for requiring that a Commissioner of Oaths must insert a date the he/she commissioned the affidavit is not disputed. In short, the insertion of the place, the date and as much that of the signature and designation of the Commissioner of Oaths is to ensure certainty of the authenticity of the affidavit. In the case of *Mandishayika* v *Sithole* HH 798/15 this court sitting with two judges had this to say

> "An affidavit is a written statement made on oath before a Commissioner of Oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the Commissioner of Oaths and must append his or her signature to the document in the presence of such Commissioner. Equally the Commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The Commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."

In the case of *First Cellular Pvt Ltd* v *NetOne Cellular Pvt Ltd* SC 1/15 PATEL JA (as he then was) discussed the issue of the need for the identity and status of the Commissioner of Oaths to be shown on the commissioned affidavit. The learned judge noted that unlike in South Africa where the Justices of the Peace and Commissioners of Oaths should state their designation and the area covered by their appointments, there is no similar provision in the legislation in this country. The learned judge had this to say at page 5 of the judgment;

> "it is common cause that there is no specific legislation regulating the issue in this jurisdiction and the matter is one that is governed by practice…"

In Zimbabwe, the Justices of the Peace and Commissioners of Oaths Act [*Chapter 7:09*] does not prescribe how the process of commissioning is carried out save in section 9(2) which requires a commissioner of oaths conferred with such designation outside Zimbabwe

to authenticate an affidavit commissioned by him or her by "affixing thereto the seal or pressing thereon the stamp used by him in connection with his office or if he possesses no such seal or stamp he shall certify thereon to that effect."

There is no similar provision which relates to locally conferred commissioners of oaths. It must however be accepted on the authority of the two judge bench in the *Mandishayika* case *supra* that the Commissioner must contemporaneously upon appending his or her signature to the affidavit insert the date of signature or commissioning.

The term practice is defined in the Blacks Law Dictionary, 12th edition as "professional, habitual or procedural action". Unless by practice direction by the Chief Justice in terms of the rules of court, a practice does not amount to a rule of court or statute whose breach renders voidable or void the failure to comply. Were a practice to be given the same prominence or weight as statute or statutory instrument or practice direction, the consequences of failed compliance would have to be found in that statute, statutory instrument or practice direction or in the common law. The local statute does not prescribe effects of a failure to comply with its own provisions.

In the case of *ZIMASCO Pvt Ltd* v *Ndlovu and 2 Ors* HMA 2/24, ZISENGWE J reasoned that the failure to insert a date on an affidavit could be cured by leading further evidence to explain the missing date. The circumstances of each case must be considered. The court has a discretion to allow evidence to be led. The question whether or not a disputed affidavit is properly commissioned is one of both law and fact. Facts envisaged relate to the circumstances surrounding the commissioning of the affidavit. The law relates to what it provides for if any, in relation to the manner of commissioning an affidavit. On the law it has been observed that the court has set out the practice as per *Mandishayika* case.

In relating to the *Mandishayika* judgment, its facts must be appreciated. The affidavit complained of in that case showed that the deponent signed it on a different date from that on which the Commissioner of Oaths signed it. The *dicta* in the *Mandishayika* case on the need for contemporaneity of dates of signing the affidavit by both the deponent and the Commissioner of Oaths was of great moment. The judgment did not relate to the competence or otherwise of allowing the filing of a supplementary affidavit by the applicant to explain the anomaly of an omission by the Commissioner of Oaths to insert a date on commissioning of the affidavit nor the discretion of the court to allow that the Commissioner of Oaths be permitted to explain the anomaly. The case is distinguishable on the facts of this matter and

the *dicta* in that case must be read and understood in the context of those facts and the question which the court had to answer.

In the *ZIMASCO* case supra, ZISENGWE J noted that the issue of an absent date on the affidavit had been raised in the opposing affidavit. The cure in the form of the affidavit of the Commissioner of Oaths which was attached to the replying affidavit was found to be adequate. The learned judge was satisfied that the Commissioner of Oaths being an admitted and practising legal practitioner of this Honourable Court could be relied upon on his explanation for the omission. The same applies herein. Significantly the respondents in opposing the application dealt with the perceived negligence of the legal practitioners. They did not however deny the correctness of their explanations, on the principle laid down in the case *Fawcett Security Operations (Pvt) Ltd* v *Director of Customs to Excise and Others* 1993 (2) ZLR 121(SC) that what is not denied in affidavits must be taken as admitted, The court therefore found their explanations reasonable and, in any event, they were not controverted. Accordingly, I condoned the inadvertent omission on the part of the Commissioner of Oaths to insert the date of commissioning and signature. I granted an order that the omission of a date in the founding affidavit in this application was adequately explained and that the affidavit was in consequence to be treated as valid.

The other preliminary issue which remained to be addressed after the abandonment of issues of *res judicata* and material dispute of fact or non-disclosure was prescription. The respondents contented that the applicant did not disclose the date when its cause of action arose. For context, I briefly set out the background to the dispute in this application. The whole application revolves around the disputed shareholding of the applicant and the first respondent in the second respondent.

The applicant and the first respondent founded the second respondent as equal 50% shareholders therein. The second respondent was incorporated on 8 December 2016. The purpose of founding the second respondent was to mine and process gold ore in Norton area.

The applicant and first respondent (parties) executed a Shareholders Agreement on the same date, 8 December 2016. The agreement recorded that it was being executed in good faith and was non-binding as its purpose was to record the parties' understanding arising from ongoing discussions and negotiations. In terms of the agreement, the parties agreed to incorporate the second respondent and to hold fifty (50%) shares apiece in the company. The parties recorded that the purpose of the second respondent was to

"manage the mining and processing gold ore at site that has been mutually identified by both parties and to ensure all the statutory prerequisites are met."

The parties proposed that the applicant would contribute the claim(s) to be exploited by the second respondent in Norton. The applicant would transfer suitable claim(s) whereafter after pegging the claim(s), the claims would be transferred to the second respondent. The applicant's representative would be responsible for administration of the second respondent and ensure statutory compliance. The first respondent was to provide an integrated mineral processing plant designed to process fifty (50) tonnes of ore per day.

The first respondent was further required to be responsible for settling the machinery. In relation to non-removable infrastructure like electricity power adapters and houses (if built), the first respondent would recover the costs from the proceeds realised before the initial sharing of profits. After the break-even or recovery of the non-removable infrastructure costs, the ownership of the infrastructure was to vest in the applicant. The machinery was not excluded.

In terms of the matrix for sharing of mined ore, the parties were to share gold ore extracted and processed at a 50 percent each daily less the expenses. The parties could mutually vary the sharing intervals. The parties were to provide two directors each in the second respondent. This was fulfilled. Satishbhat Patel a British national and Jeclan Bhagwanji Bhagati a Zimbabwean were registered as directors seconded by the applicant. For the first respondent, Guang Hu and Dong Zhao, both Chinese nationals, were appointed by the first respondent and so registered.

Unfortunately, the partnership was short-lived because of viability and other issues. Significantly, the joint venture failed. The applicant averred that after carrying out business for a year, only US$15 809 worth of revenue was produced. The applicant claimed to have invested US$224 014 in fixed assets. It averred that the first respondent contributed cash of US$190 957 and movable goods and equipment worth US$212 000. The parties agreed between them and, in the light of the losses incurred, to terminate the joint venture.

On 16 January 2018, the parties entered into a "Shareholding Transfer Agreement". The purpose of the agreement was to witness the transfer by the applicant of its 50% shareholding in the second respondent to the first respondent. The agreement set out the inputs made by the first respondent into the failed mining venture. Materially, the agreement recorded that as consideration for its fifty percent (50%) shareholding in the second respondent, the applicant had transferred four mining claims "rights" to the company at the

first respondent's expense. The agreement further recorded that the first respondent, in consideration of its fifty percent shareholding provided all the investment in equipment and devices as well as operating capital required for the gold mining which was under the control for operational purposes of the first respondent.

For the avoidance of doubt, the agreement recorded that the first respondent made the following investments:

> "1. Fixed assets amounting to US$224 014
>
> 2. Cash investments of being(sic) US$190 959
> 3. Equipment and devices investments including;
>
> i. Three (3) units of mill machine with a diameter measuring 1.5 metres which are worth US$ 120 000 in total.
> ii. one (1) power generator set of 330 kv, which is valued at US$ 60 000;
> iii. one (1) power generator set of 15 kv, which is valued at US$ 2 000; and
> iv. the investments in water pipes, electric cable, electric wire, pipe fitting, metal hardware and others; which amount to US$ 30 000
>
> The total investments in such equipment and devices amount to US$ 212 000.
>
> The investments for aforesaid three items amount to US$ 626 973 in total"

The agreement recorded that the second respondent had in 2017 processed 5 000 tonnes of gold mineral ores on four occasions and produced 372.5 grams in total with a value of US$ 15 809. The parties noted that the second respondent made "serious" losses. The partnership or joint venture enterprise could not be continued.

The agreement recorded that the first respondent in consideration for the transfer to it of the 50% shareholding held by the applicant in the second respondent to the first respondent was to pass over "one (1) gold milling machine with a diameter measuring 1.5 meters long, including two (2) separators as the consideration." The applicant was in turn to pass over to the first respondent the second respondent's documents of incorporation, registration certificates for the applicant's registered mining claims and related operational documents.

The last two paragraphs of the agreement need reciting *verbatim.* The agreement provided as follows:

> "Party B shall help Party A install the above-mentioned gold milling machine to the mining area specified by Party A, Kingross Investments (Private) Limited, within 15 working days.
> The shareholding transfer in this Agreement shall be completed after the aforesaid matters are done."

The applicant averred that the first respondent did not fulfil the terms of the share transfer agreement albeit it claimed to be the 100 percent shareholder in the second respondent. It is this claim which the applicant objects to and seeks a declaration that it still is a 50 per cent shareholder in the second respondent. The applicant averred that the first respondent failed to deliver and install the gold milling machine in breach of the agreement. It averred that since the agreement provided that the shareholding transfer was to be completed after the first respondent had performed by delivering and installing the machinery which it did not not do, the status *quo ante* the agreement wherein the applicant and the first respondent are 50 percent shareholders in the second respondent remained in place. The applicant claimed on its part that it retains possession of all registration certificates for the mining claims as well as registration certificates of the second respondent.

The applicant also averred that the first respondent was claiming that the applicant's appointed directors in the second respondent were no longer such. In consequence the applicant seeks an order that the CR14 form of the second respondent dated 8 December 2016 is the one holding and that the directors listed thereon are still such.

The first respondent in its opposing affidavit raised *in limine,* the issues of material non-disclosure, material dispute of facts, incompetent relief sought and *res judicata.* These were abandoned at the hearing. The remaining *in limine* points were the already dealt one on propriety of the affidavit and prescription. On prescription, the first respondent deposed in its opposing affidavit that the applicant collected the two separators on 27 January 2018 on which date delivery of the milling machine was tendered. It averred that delivery of the machine ought to have been made within fifteen (15) days of 16 January 2018 and that the applicant's claim prescribed on the sixteenth day after 16 January 2018 which would have been at midnight on 2 February 2018. It averred that three years post the expiration of fifteen days from the date of signing the agreement long lapsed. It accordingly posited that the applicant's claim is prescribed.

In relation to prescription the applicant responded that the applicant retained its shares and did not transfer them to the first respondent. The first respondent's plea of prescription is in my view difficult to comprehend. No time lines were given in the shareholding transfer agreement for the installation of the gold milling machine. The agreement witnesseth that the applicant was to identify a mining area whereat the first respondent would within fifteen days of such identification install the machine at that site. There is no substance in the submission

that the gold milling machine was to be delivered and installed within fifteen days of 16 January 2018 which was the date of the agreement.

The first respondent in its opposing affidavit averred that it tendered and still tenders the gold milling machine to the applicant. This amounts to an admission of the applicant's claim that the machine was not delivered. The first respondent also averred that the applicant has been uncooperative in identifying the site for installation of the machine. The issue is therefore not prescribed since the parties are seized with it and the applicant still has to identify a site for the installation. Prescription does not kick in where claims are admitted and an offer to perform and offer to perform was made on a date which renders any reliance thereon prescribed. The first respondent approbates and reprobates at the same time which position is untenable at law. It cannot plead prescription and a tender of delivery at the same time.

All having been said, the applicant does not in any event seek delivery of the machine but a declaration of rights in the second respondent. The plea of prescription in this regard becomes a red herring especially where there is an admitted non-delivery of the machine coupled with a tender to deliver the machine. I should in passing observe that the submission by counsel for the first respondent that there was delivery *brevi manu* of the machine misses the terms of the agreement which required that there should be installation of the machine. Delivery by *traditio brevi manu* does not apply because it applies where the person to whom delivery is to be made is already in possession of the *merx*. The first respondent simply blows hot and cold. It on one hand pleads that the claim is prescribed but then says there was a tender made and again tenders delivery in these proceedings. Its either the claim is prescribed and it ends there. The tender made at this time compromises prescription. The first respondent then argues that there was delivery *traditio brevi manu.* The position articulated are in contest. One cannot tell the exact stance of the first respondent.

In the case of *Zimbabwe Revenue Authority* v *Stanbic Bank* SC 13/19 MAVANGIRA JA stated:

> "The appellant contends that as a matter of fact, and as a matter of law it did not purchase the computer software in question, but merely acquired a right to use said software in accordance with the software licence agreement, and that accordingly such expenditure incurred in the acquisition of the right to use the software was not an expense incurred for the purpose of trade or in the production of income by the appellant.With this as its pronounced stance, the respondent could not, without abandoning its argument, move for relief which was predicated on an exact antithesis of its given position. In the words of DE VILLIERS J in *Hitchins* v *Hare Deas* 1932 AD 242 at 254 dealing with a similar principle of pre-emption: "At the bottom the doctrine is based upon the application of the principle that no person can be allowed to take

> up two positions inconsistent with one another or, as is commonly expressed, to blow hot and cold, to approbate and reprobate."

The above quote is the principle which applies in this matter on the first respondent's stance as I have articulated it.

The facts of this matter are not a challenge to appreciate. The parties entered into a share transfer agreement in terms of which they agreed on rights and obligations. The applicant offered its 50 per cent shareholding in the second respondent to the first respondent who accepted the offer. The agreement provided for suspensive conditions. Significantly the applicant retained the documents of incorporation of the second respondent and mining titles and other related documents. The agreement was to be perfected upon installation of the ore milling machine by the first respondent at a site chosen by the applicant. The installation was to be completed within fifteen days of the identification of the installation site. This event has not happened. The first respondent still tenders to do so. No transfer of the applicant's shareholding can be said to be due until the condition precedent has been met.

It was unlawful for the first respondent to seek to apply for duplicate second respondent's documents of incorporation and to seek to effect changes to the company structure and shareholders. The applicant is entitled to an order that the correct company structure of the second respondent is as at the 28 September 2016. The third respondent must correct the records in his/her office to reflect this. The applicant seeks a further order that the agreement of the parties is declared to be extant. The agreement is evidently extant until either party cancels it. It is a wonder that the parties continue to haggle over this matter. The first respondent tenders to perform and thus to install the machinery and the applicants wants the agreement to remain extant. In such instance commercial sense dictate that parties settle the matter. It is however their prerogative to come to court and the court typically determines the matter on the papers as it is required to in application procedure filed cases. It does not force parties to settle.

The last issue concerns costs which are in the discretion of the court. The conduct of the second respondent to seek duplicate documents of the second respondent when it was aware that the applicant retains the original documents and the attempt to effect company holding changes is to be deprecated. It constitutes criminal conduct on the face of it. A punitive costs order is called for and is justified. I should mention that in view of the finding that the applicant is still a shareholder in the second respondent, its directors in the second respondent remain so. The resolution of the second respondent to defend this application to

the extent that the applicants appointed directors in the second respondent did not participate in its making renders the resolution invalid. It is a nullity as against it. The purported opposition of the second respondent is accordingly expunged from the record. As against the second respondent, the application stands unopposed.

IT IS HEREBY ORDERED THAT;

It be and is hereby declared that

1. The shareholding transfer agreement dated 16 December 2016 between the applicant and the first respondent is extant.

2. The applicant retains its 50 percent shareholding in the second respondent until or unless there has been a fulfillment of the terms of the 16 December 2018 agreement or its valid cancellation.

3. The constitutive documents of the second respondent in the third respondent registry shall reflect the position as at 8 December 2016 and any purported changes made to them after this date are null and void.

4. The first respondent shall pay costs of this application on the legal practitioner and client scale.

CHITAPI J:……..

Ahmed and Ziyambi Legal Practitioners - applicant's legal practitioners
Mbidzo Muchadehamaa and Makoni - first and second respondents' legal practitioners